AFFIDAVIT OF PUBLICATION

DAILY TIMES-CALL

State of Colorado
County of Boulder

I, the undersigned agent, do solemnly swear that the DAILY TIMES-CALL is a daily newspaper printed, in whole or in part, and published in the City of Longmont, County of Boulder, State of Colorado, and which has general circulation therein and in parts of Boulder and Weld Counties; that said newspaper has been continuously and uninterruptedly published for a period of more than six months next prior to the first publication of the annexed legal notice of advertisement, that said newspaper has been admitted to the United States mails as second-class matter under the provisions of the act of March 3, 1879, or any amendments thereof, and that said newspaper is a daily newspaper duly qualified for publishing legal notices and advertisements within the meaning of the laws of the state of Colorado; that a copy of each number of said newspaper, in which said notice of advertisement was published, was transmitted by mail or carrier to each of subscribers of said newspaper, according to the accustomed mode of business in this office.

That the annexed legal notice or advertisement was published in the regular and entire edition of said daily newspaper once; and that one publication of said notice was in the issue of said newspaper date December 25, 2006.

Marlene Van Dyke
Agent

Subscribed and sworn to before me this 27th day of December, 2006.

Shannon M. Moreno
Notary Public

FEE $ 21.45

NOTARY PUBLIC SHANNON K. MORENO STATE OF COLORADO

MY COMMISSION EXPIRES
JANUARY 31, 2010
4202 DIVIDE DR.
LOVELAND
COLORADO 80538

NOTICE OF CREATION OF VESTED RIGHT UNDER BOULDER COUNTY LAND USE CODE
BOULDER COUNTY, COLORADO
BOARD OF COUNTY COMMISSIONERS

Pursuant to Part 1 of Article 68 of Title 24, Colorado Revised Statutes, as amended, and Article 3-207 of the Boulder County Land Use Code, as amended, the Boulder County Land Use Department hereby gives notice that the Board of County Commissioners of the County of Boulder has approved a site specific development plan, and created a vested property right for the term stated in that approval, pursuant to **Resolution 2006-158** authorizing the following request for development under the Boulder County Land Use Code.

Docket SU-06-016: CINGULAR WIRELESS (CEMEX Inc.) Telecommunications Facility
Special Use Review / Site Specific Development Plan

Request: Special Use Review / Site Specific Development Plan for a telecommunications facility to allow three (3) groups of panel antennas and attendant equipment at the top of the CEMEX cement plant silo. The antennas will be mounted flush with the side of the silo, and the equipment will be placed on the roof deck of the silo.

Location: At 5134 Ute Hwy., south of Ute Hwy., east of North Foothills Hwy., in Sections 20, 21, 27, 28, and 29, T3N, R70W

Zoning: General Industrial (GI)

Details regarding this site specific development plan are available for public examination at the Boulder County Land Use Department, 14th and Spruce Streets, Boulder, CO, or by calling (303) 441-3930.

Published in the Daily Times-Call, Longmont, Colorado, December 25, 2006.

Post Office Box 471◆ Boulder, Colorado 80306

Land Use Department

Courthouse Annex

2045 13th Street ◆ 13th & Spruce Streets ◆ Boulder, Colorado 80302 ◆ (303) 441-3930

http://www.bouldercounty.us/lu/

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Tom Mayer
County Commissioner

Ben Pearlman
County Commissioner

Will Toor
County Commissioner